

2018 Y L R 700

[Lahore (Rawalpindi Bench)]

Before Mirza Viqas Rauf and Jawad Hassan, JJ

NEELAM BIBI---Petitioner

Versus

The STATE---Respondent

Criminal Miscellaneous No.1321/B of 2017, decided on 8th August, 2017.

Control of Narcotic Substances Act (XXV of 1997)---

---Ss. 9(c), 25 & 51---Recovery of narcotic substance---Bail, refusal of---Female accused---Police witnesses---Charas weighing 1600 grams was recovered from shoulder bag of accused lady---Validity---Mere non-associating witnesses from public was not sufficient to vitiate search and recovery proceedings---Applicability of S.103, Cr.P.C. had been specifically ousted to recovery proceedings under S.25 of Control of Narcotic Substances Act, 1997---Alleged recovery was witnessed by police officials who fully corroborated the same in terms of their statements recorded under S.161 Cr.P.C.---Only tentative assessment was to be made and deeper appreciation was not warranted/ permissible at bail stage---Sufficient material was available on record to connect accused with alleged crime and provisions of S.51 of Control of Narcotic Substances Act, 1997, were attracted---Accused lady did not deserve any leniency as no such distinction was provided under Control of Narcotic Substances Act, 1997, and being female she could not claim any immunity on the basis of gender---Bail was refused in circumstances.

The State v. Aleem Haider 2015 SCMR 133; Muhammad Noman v. The State 2017 PCr.LJ 335; The State v. Ghulam Mustafa 2016 YLR 1526; Ashique Hussain v. The State 2014 MLD 509; The State v. Zamray Khan 2011 SCMR 1408; The State v. Abdul Ghani 2010 SCMR 61; Ahudha Manliki v. The State PLD 2007 Kar. 110; The State v. Kashif Ali 2007 PCr.LJ 493; The State v. Malik Amir 2005 YLR 1411 and The State v. Danish Ali Dewan and others 1999 YLR 1445 ref.

Miss Kiran Aftab for Petitioner.

Umar Hayat Gondal, Additional Prosecutor General with Abid, S.I. for the State.

ORDER

JAWAD HASSAN, J.---The Petitioner, Neelam Bibi, seeks her post arrest bail in case FIR No.55 dated 15.06.2017 ("FIR"), registered under section 9-C of the Control of Narcotic Substances Act, 1997 (the "Act") at the Police Station, Attock Khurd, District Attock.

2. The prosecution version embodied in the FIR is that the Petitioner was apprehended by the police on the basis of suspicion and when she was searched, from her shoulder bag in her possession, Charas weighing 1600 grams which was in a baby shirt (Farak) and around the same, blue coloured solution tape was wrapped, containing two bags was recovered. In Packet No.1, Charas weighing 1100 grams and in Packet No.2 Charas weighing 500 grams was found (Total 1600 grams). Out of both packets, Charas weighing 55 grams and 25 grams from each respectively was separated and sent to Chemical Examiner for analysis.

3. Arguments heard and record perused.

4. It is reflected from perusal of the record that the petitioner is specifically nominated in the FIR with a specific role of having Charas weighing 1600 grams in her possession. The argument of the counsel for the Petitioner that recovery is fake and planted is a question of deeper appreciation which would be determined during the course of trial and cannot be considered at bail stage. Prima facie, there is no animosity on the part of the complainant to falsely implicate the Petitioner in the alleged crime. The defence plea can only be appreciated at the time of trial after recording of evidence. The alleged recovery was effected from the Petitioner from her shoulder bag containing huge quantity of Charas 1600 grams. Mere non-association of the witnesses from the public is not sufficient to vitiate the search and recovery proceedings as the applicability of section 103 of the Code of Criminal Procedure, 1898 (the "Cr.P.C.") has been specifically ousted to the proceedings conducted under the Act in terms of section 25 of the Act. The alleged recovery was witnessed by the police officials who have fully corroborated the same in terms of their statements recorded under section 161 of the Cr.P.C.

5. As far as the law for this crime is concerned, section 6 of the Act clearly prohibits the possession of narcotic drug, which has been defined in section 2(s) of the Act as, "coca leaf, cannabis, heroin, opium, poppy straw and all manufactured drugs". Admittedly, Charas falls under the definition provided in the said section. Further, section 9(c) of the Act provides punishment for life or imprisonment for a term which may extend to fourteen (14) years and fine upto one (1) million rupees, for contravention of Section 6 of the Act, among others, if the quantity of narcotic drug exceeds from a kilogram.

6. The purpose of enactment of the Act appears to strengthen measures for controlling the possession, menace of use and sale of the narcotic substances in the country, and therefore, the punishments have been enhanced, and many provisions have been enacted so that crime in respect of the narcotic substances should be discouraged and minimized. Section 51 of the Act evidently provides that:--

"Notwithstanding anything contained in sections 496 and 497 of the Criminal Procedure Code, 1898 (V of 1898), bail shall not be granted to an accused person charged with an offence under this Act or under any other law relating to narcotics where the offence is punishable with death."

Further, the punishment provided for the offence of the Petitioner falls within the ambit of prohibitory clause of section 497, Cr.P.C. Under section 29 of the Act, presumption would be that a person who was found in possession of narcotics had committed offence unless otherwise proved.

7. It is significant to mention here that the bail of the accused(s) in such like cases has been rejected in many instances/ occasions by the Honorable Superior Courts of Pakistan in cases The State v. Aleem Haider (2015 SCMR 133); Muhammad Noman v. The State (2017 PCr.LJ Peshawar 335); The State v. Ghulam Mustafa (2016 YLR Sindh 1526); Ashiq Hussain v. The State (2014 MLD Sindh 509); The State v. Zamray Khan (2011 SCMR 1408); The State v. Abdul Ghani (2010 SCMR 61); Ahudha Manliki v. The State (PLD 2007 Karachi 110); The State v. Kashif Ali (2007 PCr.LJ Karachi 493); The State v. Malik Amir (2005 YLR Lahore 1411) and The State v. Danish Ali Dewan and others (1999 YLR Karachi 1445).

8. In the instant case, nothing favorable to the Petitioner has been brought on record. She is connected in the offence of heinous nature and there are no reasonable and probable grounds to believe that she has not committed the offence and has been falsely implicated. Huge quantity of narcotics, being Charas, was recovered from the possession of the Petitioner and the reasonable grounds exist that the Petitioner has committed a non-bailable offence.

9. We are of the view that at bail stage, only tentative assessment is to be made and deeper appreciation is not warranted/permissible. Sufficient material is available on the record to connect the Petitioner with the alleged crime and we have no doubt in our mind that case of the Petitioner clearly attracted the bar contained in Section 51 of the Act. Further, the Petitioner being lady does not deserve any leniency as no such distinction is provided in the Act and being female she cannot claim any immunity on the basis of gender.

10. We are of the further view that the accused/Petitioner is alleged to be involved in an offence against the society, thus we are inclined to dismiss this petition, being bereft of merits.

11. However, while parting with the order, we shall endorse here that the accused is legally entitled for a speedy decision, therefore, the trial Court is directed to expedite and conclude the trial of the case within shortest possible time, preferably within a period of three (3) months, from the receipt of order and shall not adjourn the case except on a genuine and reasonable ground or cause.

12. The above said findings and observations made by this Court are tentative in nature and shall have no bearing upon the merits of the case during the course of trial.

MH/N-23/L

Bail refused.